

LA-CCRP-ART-989

ARTICLE 989 MOTION FOR EXPUNGEMENT OF A RECORD OF ARREST AND CONVICTION OF A FELONY
Assigned component identity: la-978-felony-conviction-primary-filing-1

Fortieth Judicial District Court for the Parish of Saint John the Baptist, STATE OF LOUISIANA

PARISH: Parish of Saint John the Baptist

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

DOCKET OR CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001

DIVISION OF THE COURT: Division Z-Long

MOTION FOR EXPUNGEMENT OF A RECORD OF ARREST AND CONVICTION OF A FELONY

La. C.Cr.P. art. 978, on the statutory Article 989 form composed from the committed LA-STATUTORY-FORMS authority.

PART I - DEFENDANT INFORMATION

Mover full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

Mover date of birth: 1968-12-31

Race:

Gender:

Last four digits of the Social Security number:

ARREST AND CONVICTION INFORMATION

Date of arrest: 2004-12-31

Arresting law enforcement agency: Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division

Original arrest charge as it appears on the state rap sheet: Original arrest charge exactly as it appears on the state rap sheet, including the full charge description carried by the boundary fixture record

Felony conviction offense: Felony offense wording exactly as it appears on the boundary fixture court record, including the full court-record description

Statute of conviction: Statutory citation exactly as it appears on the boundary fixture court record

Date of conviction: 2005-06-30

Arrest or booking number shown on the state rap sheet:

How many charges this arrest carries: One charge on one arrest

Whether the felony conviction is for operating a vehicle while intoxicated: No

PART II - STATUTORY BASIS

Statutory basis relied on under Article 978(A): Article 978(A)(3) - the conviction is one for which a first offender pardon was granted, evidenced by the pardon itself

Date the Louisiana criminal background check was ordered: 2026-08-01

Article 978(A)(1) rests on a conviction set aside and a prosecution dismissed under Article 893(E). Article 978(A)(2) rests on more than ten years having elapsed since completion of sentence, probation, parole or suspension of sentence, with no felony conviction during that ten-year period, no pending felony charge and no misdemeanor conviction in the last five years, and it requires the district attorney's certification to be included with this motion. Article 978(A)(3) rests on a first offender pardon. Article 978(B) excludes named categories of conviction, and Article 978(B)(3) carries five exceptions for controlled dangerous substance offences.

Date the sentence, deferred adjudication, probation or parole was completed: 2009-06-30

The mover asks the court to expunge the record of the arrest and conviction identified above, and, where an Affidavit of No Opposition executed by each entity named in Article 979 is attached, to grant the motion without a contradictory hearing as the Article 991 Order provides.

SIGNATURE BLOCKS

LA-CCRP-ART-989, assigned component identity la-978-felony-conviction-primary-filing-1

IF REPRESENTED BY COUNSEL - ATTORNEY BLOCK

Attorney name in the represented-mover block:
Attorney bar number in the represented-mover block:
Attorney address in the represented-mover block:
Attorney telephone in the represented-mover block:
Attorney signature in the represented-mover block:

This block is left entirely blank on this packet. The fixture records no representation, and an attorney block is completed by counsel or not at all.

IF NOT REPRESENTED BY COUNSEL - UNREPRESENTED MOVER BLOCK

Signature of the unrepresented mover:
Date of the mover's signature:
Printed name: Maria-Alejandra O'Shaughnessy-Whitfield

FOR THE CLERK - LEAVE BLANK

Filed on stamp applied by the clerk:
Certificate of service filed by the clerk showing the mailing date:

Under Article 979 the clerk serves the motion and files the certificate of service. The mover serves nobody.

LA-CCRP-ART-991
ARTICLE 991 ORDER

Assigned component identity: la-978-felony-conviction-proposed-order-2

Fortieth Judicial District Court for the Parish of Saint John the Baptist, STATE OF LOUISIANA

PARISH: Parish of Saint John the Baptist

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

DOCKET OR CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001

DIVISION OF THE COURT: Division Z-Long

ORDER

La. C.Cr.P. art. 991, on the statutory Article 991 form composed from the committed LA-STATUTORY-FORMS authority.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided, and no relief exists unless and until a judge completes and signs it and the clerk enters it.

Ordering paragraphs on the Article 991 Order:

.....
.....
.....
.....

Finding that no contradictory hearing is required:

Where an Affidavit of No Opposition executed by each entity named in Article 979 is attached to the motion, the Article 991 Order provides that no contradictory hearing is required. That finding is the court's to make.

Return date set for a contradictory hearing:

Date of the court order:

Place of the court order:

Signature of the judge on the Article 991 Order:

LA-CCRP-ART-992

ARTICLE 992 ORDER OF EXPUNGEMENT

Assigned component identity: la-978-felony-conviction-proposed-order-3

Fortieth Judicial District Court for the Parish of Saint John the Baptist, STATE OF LOUISIANA

PARISH: Parish of Saint John the Baptist

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

DOCKET OR CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001

DIVISION OF THE COURT: Division Z-Long

ORDER OF EXPUNGEMENT

La. C.Cr.P. art. 992, on the statutory Article 992 form composed from the committed LA-STATUTORY-FORMS authority.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. The mover supplies the caption and the identifiers of the record to be expunged, and nothing else on this page.

ARREST AND CONVICTION INFORMATION

Date of arrest: 2004-12-31

Arresting law enforcement agency: Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division

Original arrest charge as it appears on the state rap sheet: Original arrest charge exactly as it appears on the state rap sheet, including the full charge description carried by the boundary fixture record

Felony conviction offense: Felony offense wording exactly as it appears on the boundary fixture court record, including the full court-record description

Statute of conviction: Statutory citation exactly as it appears on the boundary fixture court record

Date of conviction: 2005-06-30

Whether the motion is granted or denied:

Findings on the Article 992 Order of Expungement:

.....
.....

Decretal paragraphs on the Article 992 Order of Expungement:

.....
.....
.....
.....

Date of the court order:

Place of the court order:

Signature of the judge on the Article 992 Order of Expungement:

la-978-felony-conviction-instructions-7

ARTICLE 978 PARTICIPANT AND FILING INSTRUCTIONS

Assigned component identity: la-978-felony-conviction-instructions-7

Participant full legal name on the instructions: Maria-Alejandra O'Shaughnessy-Whitfield

READ THIS FIRST

Every felony conviction. Counsel requires attorney review before filing on this track without exception, and the packet carries that instruction prominently.

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield. Packet set la-978-felony-conviction-set, version 1.0.0.

This packet set serves 4 route(s):

- obligation:track-pathway:LA:la-978-felony-conviction:felony-article-893-e-set-aside-followed-by-expungement
- obligation:track-pathway:LA:la-978-felony-conviction:felony-ten-year-clean-period-expungement
- obligation:track-pathway:LA:la-978-felony-conviction:first-offender-pardon-felony-expungement
- obligation:track-pathway:LA:la-978-felony-conviction:human-trafficking-survivor-expungement-fee-exempt-route

What is in this packet

- la-978-felony-conviction-primary-filing-1 - Article 989 Motion for Expungement of a Record of Arrest and Conviction of a Felony (primary_filing, required).
- la-978-felony-conviction-proposed-order-2 - Article 991 Order (proposed_order, required).
- la-978-felony-conviction-proposed-order-3 - Article 992 Order of Expungement (proposed_order, required).
- la-978-felony-conviction-instructions-7 - Article 978 Participant and Filing Instructions (instructions, required).

What is not generated, and the condition the record states

- la-978-felony-conviction-fee-waiver-4 (fee_waiver, LA-CCRP-ART-988): Generated only where the participant may qualify for the Article 983(F) exemption. Louisiana State Police states that anyone ever convicted of a felony, including an expunged felony, is ineligible for it, so on this track it will almost never apply. This packet does not meet that condition, so the component is not generated.
- la-978-felony-conviction-continuation-5 (continuation, LA-CCRP-ART-993): Used only where the arrest carries more charges or counts than the Article 989 motion's own fields hold. This packet does not meet that condition, so the component is not generated.
- la-978-felony-conviction-instructions-6 (instructions, LA-CCRP-ART-984): Applies only where the felony conviction is for operating a vehicle while intoxicated. This packet does not meet that condition, so the component is not generated.

The Article 993 supplemental sheet and the Article 998 marijuana motion are statutory forms for which the committed legal-design record states that no template exists, none is counsel-approved and no implementation is authorized. Where your arrest carries more charges or counts than the Article 989 motion holds, ask the clerk of court for the Article 993 supplemental sheet rather than adding pages of your own; Article 986(B) permits a supplemental form only so far as it adheres to the statutory form.

What you must supply before filing

Check every prefilled fact against your own court record and your background check, and correct the packet where they disagree. The blanks below are deliberately empty and are yours to complete.

Document | Blank on the document | What you must supply

LA-CCRP-ART-989 | Race | your race, written as the state rap sheet writes it, so Part I matches the record the Bureau holds

LA-CCRP-ART-989 | Gender | your gender, written as the state rap sheet writes it, so Part I matches the record the Bureau holds

LA-CCRP-ART-989 | Last four digits of the Social Security number | the last four digits of your Social Security number, written on the form by hand at the moment you file

LA-CCRP-ART-989 | Arrest or booking number shown on the state rap sheet | the arrest or booking number exactly as your Right to Review or sheriff's background check prints it

What you must obtain or confirm before filing (23 item(s) held by the committed track registry)

- obtain_document (required, required before filing): Obtain Louisiana criminal background check dated within the past sixty days. Louisiana State Police recommends a fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, original arrest charge, arrest number and counts. Order it so it is still inside its sixty-day life on the day the motion is filed; the Article 989 form marks it required on its face. Obtained from: Louisiana State Police (Right to Review) or the parish sheriff.

- obtain_document (conditional, required before filing): Obtain District attorney certification verifying no conviction of any other criminal offence during the ten-year period and no pending criminal charge. Article 978(A)(2) requires it and the Article 989 attachment checklist lists it. Ask the district attorney's office in writing; the packet includes a cover request naming the exact certification and the ten-year window. LegalEase cannot produce it, and its absence is a filing requirement rather than a generation blocker. Obtained from: The district attorney's office for the parish of conviction. Condition: Required on the Article 978(A)(2) ten-year route and on the Article 978(E) lane.

- obtain_document (conditional, required before filing): Obtain Certified copy of the Article 893(E) order setting aside the conviction and dismissing the prosecution. Ask the clerk for a certified copy. Where no such order exists and Article 893 relief appears available, obtain it first on the separate Article 987 track and then return here. Obtained from: Clerk of the court that signed the order. Condition: Required on the Article 978(A)(1) route.

- confirm_answer (conditional, required before filing): Check your answer to "Has a court already signed an order setting aside the conviction and dismissing the prosecution under Article 893(E)?" against Certified copy of the Article 893(E) order setting aside the conviction and dismissing the prosecution, and correct the packet if they disagree. Condition: Required on the Article 978(A)(1) route.

- obtain_document (conditional, required before filing): Obtain Copy of the first offender pardon. Listed on the Article 989 attachment checklist. Under R.S. 15:572 the pardon is automatic for a first offender on completion of sentence, but it does not issue while court costs for the conviction remain unpaid. If costs are outstanding, pay them and then request the pardon; this is the most common and most fixable obstacle on this route. Obtained from: Louisiana Board of Pardons and Committee on Parole, or the Department of Public Safety and Corrections. Condition: Required on the Article 978(A)(3) first offender pardon route.

- obtain_document (conditional, required before filing): Obtain Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied. Obtained from: The district attorney's office for the parish. Condition: Applies only where the participant may qualify for the Article 983(F) fee exemption.

- obtain_document (conditional, required before filing): Obtain Bill of information or indictment for each charge. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest. Obtained from: Clerk of court for the parish. Condition: Applies where a prosecution was instituted, so a charging instrument exists.

- obtain_document (conditional, required before filing): Obtain Minute entry showing the final disposition. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of. Obtained from: Clerk of court for the parish. Condition: Applies where the case reached a disposition on the court's minutes.

- obtain_document (conditional, required before filing): Obtain Certified letter from the Office of Motor Vehicles under Article 984. Article 984 requires a person convicted of operating a vehicle while intoxicated to supplement the motion with a certified letter from the Office of Motor Vehicles proving compliance with that Article, and it is attached to the motion. A further fifty-dollar court cost is assessed and paid to the Office of Motor Vehicles for storage and retrieval. Obtained from: Department of Public Safety and Corrections, Office of Motor Vehicles. Condition: Applies only to a conviction for operating a vehicle while intoxicated.

- obtain_document (conditional, required before filing): Obtain Copy of the order waiving the sex offender registration and notification requirements under R.S. 15:542(F). Listed on the Article 989 attachment checklist. Article 978(B)(2)(b) makes such an order sufficient to meet the mover's burden of showing that a pre-15-August-2001 carnal knowledge conviction would today be misdemeanor carnal knowledge of a juvenile. Obtained from: The court that issued the waiver. Condition: Applies only to the narrow Article 978(B)(2)(b) carnal-knowledge exception.

- obtain_document (conditional, required before filing): Obtain Affidavit of No Opposition from each named agency. The agencies' own instrument on the Article 990 form. LegalEase cannot prepare, complete or sign it. Obtained from: The district attorney, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency. Condition: Optional, and not available on the Article 978(E) lane, where a contradictory hearing is required by the Article itself.

- complete_field (required, required before filing): Every finding, ruling, date, place and signature on the Article 991 Order - Article 991 Order - the ordering paragraphs, the date and place line and the judge's signature line.

- complete_field (required, required before filing): Every granting or denying paragraph, finding, date, place and signature on the Article 992 Order of Expungement - Article 992 Order of Expungement - the decretal paragraphs, the date and place line and the judge's signature line.

- complete_field (required, required before filing): Race and gender - Article 989 Motion, Part I Defendant Information.
- complete_field (required, required before filing): The participant's signature and the date of signing - Article 989 Motion, unrepresented-mover signature block on the final page.
- complete_field (required, required before filing): Every certification box and the district attorney's signature on the Article 988 Motion for Fee Exemption - Article 988 Motion for Fee Exemption, the certification section and signature block.
- complete_field (required, required before filing): The whole of the Article 990 Affidavit of Response - Not printed in the participant packet; described in the filing instructions only.
- complete_field (required, required before filing): The clerk's service of the motion and of the order and judgment - Not printed in the participant packet; described in the filing instructions only.
- sign (required, required before filing): The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.
- pay_fee (required, required before filing): Article 983(A) caps the total cost at five hundred fifty dollars, collected by the clerk at filing and non-refundable even if the motion is denied. Where the conviction is for operating a vehicle while intoxicated, Article 984(C) assesses a further fifty-dollar court cost payable to the Office of Motor Vehicles. On the first offender pardon route the participant must also have paid the underlying court costs of the conviction, which is a precondition of the pardon rather than an expungement fee.
- apply_fee_waiver (conditional, required before filing): Article 983(F) through the Article 988 form in principle, but Louisiana State Police states that a person is ineligible for the exemption if they have ever been convicted of a felony, including an expunged felony. On a felony conviction track the exemption will almost never be available, and the packet says so rather than implying a waiver that will be refused. Condition: Applies only when the participant cannot pay the filing fee.
- serve_party (required): The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.
- file (required): File the Article 989 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of arrest or conviction. Article 972.1 gives district courts, city and parish courts, mayor's and traffic courts, juvenile and family courts, and the New Orleans municipal and traffic courts authority within their trial jurisdiction. Article 986 provides that only the forms in Articles 987, 988, 989, 990, 991, 992, 993, 994, 995 and 998 shall be used, so there is no drafted pleading and no local variant; Article 986(C) lets a clerk alter the form only to show the name of that court.

Where this is filed

- Venue: The district court with trial jurisdiction over the felony in the parish of conviction, under Article 972.1.
- Destination (clerk): Clerk of court for the parish of conviction

- File the Article 989 motion with the proposed Article 991 and Article 992 orders. The clerk collects the Article 983 fees at filing and serves under Article 979.

What it costs, and the fee exemption

- Fees: Article 983(A) caps the total cost at five hundred fifty dollars, collected by the clerk at filing and non-refundable even if the motion is denied. Where the conviction is for operating a vehicle while intoxicated, Article 984(C) assesses a further fifty-dollar court cost payable to the Office of Motor Vehicles. On the first offender pardon route the participant must also have paid the underlying court costs of the conviction, which is a precondition of the pardon rather than an expungement fee.

- Fee waiver: Article 983(F) through the Article 988 form in principle, but Louisiana State Police states that a person is ineligible for the exemption if they have ever been convicted of a felony, including an expunged felony. On a felony conviction track the exemption will almost never be available, and the packet says so rather than implying a waiver that will be refused.

Notice, objection and service

- Notice and objection: Under Article 980 any entity served under Article 979 may object by filing an affidavit of response, with reasons and with service on the defendant, within sixty days from the date of service of the motion. Since 1 August 2015 the Louisiana Bureau of Criminal Identification and Information is on the same sixty-day period as everyone else. Article 980(C) lets the court grant one extension of not more than thirty days beyond the original sixty. A timely objection means a contradictory hearing, which the objecting party must ask to have set. Where an Affidavit of No Opposition executed by each named agency is attached to the motion, the Article 991 Order states that no contradictory hearing is required and the motion may be granted ex parte. On the Article 978(E) lane a contradictory hearing is required by the Article itself, so the ex parte route is not available there and the objection window is not the operative constraint.

- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

Signing

- Signature: The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.

- Notarization: none

Fields deliberately left blank

- Sign and date the unrepresented-mover block yourself, after reading the completed motion. If you are represented, give the packet to your attorney; the attorney block belongs to counsel and is left blank here.

- Leave every ordering paragraph, finding, granted-or-denied election, return date, date, place and judge's signature on the Article 991 Order and the Article 992 Order of Expungement blank. Those are the court's.

- Leave the clerk's filed-on stamp and the clerk's certificate of service blank. Article 979 makes service the clerk's act.

- The Article 990 Affidavit of Response is the responding entity's own instrument. It is not printed in this packet and you never complete it.

Stop self-help and get legal help (all 9 stop conditions the record holds)

- Stop 1 of 9: Every felony conviction. Counsel requires attorney review before filing on this track without exception, and the packet carries that instruction prominently.

- Stop 2 of 9: The Article 978(E) violent-offence lane, which requires a contradictory hearing and a discretionary judicial finding. Hand off before filing.

- Stop 3 of 9: Any controlled dangerous substance offence whose fit with the five Article 978(B)(3) exceptions is not clear on the face of the statute of conviction.

- Stop 4 of 9: Any offence that might be a crime of violence under R.S. 14:2(B) or a sex offence or offence against a minor victim under R.S. 15:541.

- Stop 5 of 9: Any case where first offender pardon status or entitlement is unclear.

- Stop 6 of 9: Any named agency files an Article 990 affidavit of response objecting to the motion.

- Stop 7 of 9: The court sets a contradictory hearing under Article 980(D).

- Stop 8 of 9: The record of the arrest names anyone besides the participant, which routes to the Article 985 redaction track.

- Stop 9 of 9: The participant is in hard-labour custody, so Article 975 bars filing.

Hard eligibility boundaries the record states (6 exclusion(s))

- A crime of violence as defined by or enumerated in R.S. 14:2(B), unless the offence is one of the six named in Article 978(E) and the court grants relief after a contradictory hearing (Art. 978(B)(1)).

- Notwithstanding any provision of Article 893, a sex offence or a criminal offence against a victim who is a minor as each is defined by R.S. 15:541, or any offence occurring before 18 June 1992 that would be so defined had it occurred on or after that date (Art. 978(B)(2)(a)).

- A violation of the Uniform Controlled Dangerous Substances Law (Art. 978(B)(3)), except any of the following, which may be expunged: possession of a controlled dangerous substance under R.S. 40:966(C), 967(C), 968(C), 969(C) or 970(C); possession with intent to distribute; a violation punishable by a term of imprisonment of not more than five years; a violation that may be expunged under Article 893(E); and a violation for which the person is entitled to a first offender pardon under La. Const. art. IV, Sec. 5(E)(1).

- A conviction for domestic abuse battery (Art. 978(B)(4)).

- A first offender pardon route is unavailable where the offence is a crime of violence or a sex offence (Art. 978(A)(3)).

- A person in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour may not file (Art. 975).

Waiting periods:

- Article 978(A)(1) - the conviction was set aside and the prosecution dismissed under Article 893(E): None. The set-aside and dismissal is the qualifying event, and it is obtained on the separate Article 987 track.

- Article 978(A)(2) - the ten-year route: More than ten years from completion of any sentence, deferred adjudication, or period of probation or parole, with no conviction of ANY OTHER CRIMINAL OFFENCE during that ten-year period and no criminal charge pending. This is not the misdemeanor test with a larger number: the misdemeanor clean period bars felony convictions only, and this one bars any criminal offence.

- Article 978(A)(3) - the first offender pardon route: None beyond entitlement to the pardon itself. Under R.S. 15:572 a first offender never previously convicted of a felony is automatically pardoned on completion of sentence without a Board of Pardons recommendation or gubernatorial action, but no pardon issues unless the court costs for the conviction are paid.

- Article 978(E) - the violent-offence lane for aggravated battery, second degree battery, aggravated criminal damage to property, simple robbery, purse snatching, or illegal use of weapons or dangerous instrumentalities: More than ten years since completion of sentence, deferred adjudication, probation or parole, with no criminal conviction during that period and no pending charge, and only after a contradictory hearing at which the court may grant relief in its discretion.

What the committed record requires these instructions to carry

Sequencing is the deliverable in Louisiana. The instructions carry, in order: order the Right to Review or sheriff's background check and watch its sixty-day life; complete the participant fields of the Article 988 fee exemption and deliver it to the district attorney BEFORE filing, expecting it back within fifteen days; request whichever Article 989 certification letters the chosen eligibility basis needs; file with the clerk with the fee or the returned exemption; the clerk serves the district attorney, the Bureau and the arresting agency under Article 979; agencies have sixty days from service to object under Article 980, extendable once by up to thirty days; an Affidavit of No Opposition from each named agency attached to the motion supports an ex parte grant with no contradictory hearing; if expungement is granted the clerk serves the order and judgment under Article 982. It also carries the Louisiana State Police list of common fatal errors: wrong arrest date, using the amended charge instead of the original arrest charge, omitting counts, putting misdemeanours and felonies in the wrong section, missing dispositions or certifications, and choosing the wrong eligibility basis. On this track the instructions carry a prominent attorney-review notice on every felony without exception; the Article 987 routing rule where Article 893(E) relief has not occurred, with the Article 987 packet referenced rather than duplicated; the first-offender-pardon court-costs question and how to fix unpaid costs; and a plain statement that an Article 978(E) contradictory hearing, an agency objection, or any contested factual question is where self-help ends and a lawyer takes over.

Additional requirements where the conviction is for operating a vehicle while intoxicated (LA-CCRP-ART-984)

Article 984 statutory requirements, retained by Edition 1.1 as an instructions asset rather than a packet form and never filled in: a certified letter from the Office of Motor Vehicles attached to the motion, which the participant obtains; the clerk's mailing of the certified plea record, fingerprints and Article 556 or 556.1 proof; and an additional fifty-dollar court cost paid to the Office of Motor Vehicles. Conditional to vehicle-while-intoxicated cases only, and never a gate on an unrelated Louisiana track.

The Article 993 supplemental sheet (LA-CCRP-ART-993)

Article 993 is the statutory supplemental sheet, and Article 986(B) permits supplemental forms so long as they adhere to it. It is a participant-completed continuation sheet with the same eligibility check-boxes as the motion, grouped by arrests that did not result in conviction, misdemeanor convictions and felony convictions. Retained by Edition 1.1 as a source-gated asset. Its absence would restrict only multi-count cases; a single-count packet does not need it. Output strategy corrected to custom_pleading by rcap-la-arts-993-995-998-output-strategy-memo-correction, against the adjudication at rcap-la-arts-993-995-998-html-source-output-strategy-adjudication. There is no official PDF of this article: the Legislature publishes the controlling text as HTML on its own article page, and the retained capture is a browser print of that page rather than an issuer publication, so official_pdf_fill can only resolve to a missing source. process_guidance is equally wrong, because a participant submission exists on this component. The article remains the authority and the source identity, which is why officialFormId and officialSourceUrl are kept. Article 986(A) makes the statutory forms exclusive, so the rendering must reproduce the Legislature's own words rather than paraphrase them, and under Article 986(C) the court name is the only authorized variation. The Louisiana Supreme Court's local city and parish packet is not a statewide substitute and must not be used as one. No template exists yet, none is counsel-approved, and no implementation is authorized here. Article 993 is one statutory sheet carrying three Yes/No sections - arrests without conviction, misdemeanor convictions and felony convictions - so a template must render it as a single sheet and must not be split into three. The Article 986(B) adherence requirement is unchanged: a supplemental form is permitted only so far as it adheres to the statutory form. The sheet is participant-completed throughout.

What the record does not settle (5 open question(s))

- Articles 987, 988, 989, 991, 992 and 994 - the Article 986 mandatory forms on which every Louisiana motion track depends - are retained by no Master Library Edition 1.1 asset. Edition 1.1 holds the Louisiana statutory text only for Articles 990, 993, 995, 998 and 999.1, and the repository holds Articles 987 through 994 solely as generic legis.la.gov browser-print HTML captures, which the edition does not treat as workflow documents. Confirm the canonical source form for each and adopt them in a successor edition before any Louisiana packet is released. (impact: release_blocker; affects: correct_form)
- Whether the Article 989 ex parte route through an Affidavit of No Opposition is practically obtainable, and what the district attorney, the Bureau and the arresting agency each require before executing one. This determines whether a Louisiana packet ordinarily avoids a hearing. (impact: nonblocking_research_note; affects: participant_instructions)
- Title XXXIV was amended three times in the 2024 Regular Session - Acts 270 (Articles 972 and 983(G); enacting 999 and 999.1), 560 (enacting 985.3) and 580 (Article 978) - after the reviewed source notes, which ran through 2023. No 2025 or 2026 session amendment to Title XXXIV was located. Louisiana needs the scheduled annual re-verification the review recommended, on the same footing as Kansas. (impact: nonblocking_research_note; affects: governing_mechanism)
- Acts 2024, No. 580 amended Article 978 after the reviewed source notes, which ran through Acts 2020, No. 78. The current official text of Article 978(B) has been read in full and the five controlled-substance exceptions, the carnal-knowledge exception and the Article 978(E) lane are as recorded here. Confirm which Paragraph Acts 2024, No. 580 changed and whether it altered any eligibility boundary this track relies on. (impact: release_blocker; affects: eligibility_branch)
- Whether more than one felony conviction may be expunged within a single ten-year period, and on what showing each must independently qualify. The review states it is permitted where each is independently eligible under Article 978, and the current text does not address the point expressly. (impact: release_blocker; affects: eligibility_branch)

What this packet is not

This built packet is review evidence. It is pending independent completeness verification, raster acceptance, visual review and counsel review. It is not approved for live use, it opens no route, and it is not legal advice.

Filing instructions - Motion to Expunge Record of Arrest and Conviction of a Felony Offense (La. C.Cr.P. art. 978)

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

- Filing: File the Article 989 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of arrest or conviction. Article 972.1 gives district courts, city and parish courts, mayor's and traffic courts, juvenile and family courts, and the New Orleans municipal and traffic courts authority within their trial jurisdiction. Article 986 provides that only the forms in Articles 987, 988, 989, 990, 991, 992, 993, 994, 995 and 998 shall be used, so there is no drafted pleading and no local variant; Article 986(C) lets a clerk alter the form only to show the name of that court.

- Where: Clerk of court for the parish of conviction. File the Article 989 motion with the proposed Article 991 and Article 992 orders. The clerk collects the Article 983 fees at filing and serves under Article 979.

- Venue: The district court with trial jurisdiction over the felony in the parish of conviction, under Article 972.1.

- What the registry says about filing: File the Article 989 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of arrest or conviction. Article 972.1 gives district courts, city and parish courts, mayor's and traffic courts, juvenile and family courts, and the New Orleans municipal and traffic courts authority within their trial jurisdiction. Article 986 provides that only the forms in Articles 987, 988, 989, 990, 991, 992, 993, 994, 995 and 998 shall be used, so there is no drafted pleading and no local variant; Article 986(C) lets a clerk alter the form only to show the name of that court.

- What it costs: Article 983(A) caps the total cost at five hundred fifty dollars, collected by the clerk at filing and non-refundable even if the motion is denied. Where the conviction is for operating a vehicle while intoxicated, Article 984(C) assesses a further fifty-dollar court cost payable to the Office of Motor Vehicles. On the first offender pardon route the participant must also have paid the underlying court costs of the conviction, which is a precondition of the pardon rather than an expungement fee.

- Fee exemption: Article 983(F) through the Article 988 form in principle, but Louisiana State Police states that a person is ineligible for the exemption if they have ever been convicted of a felony, including an expunged felony. On a felony conviction track the exemption will almost never be available, and the packet says so rather than implying a waiver that will be refused.

- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

The order of operations the record fixes: order the background check and watch its sixty-day life; deliver any Article 988 fee exemption to the district attorney before filing and expect it back within fifteen days; request whichever certification letters the chosen basis needs; file with the clerk with the fee or the returned exemption; the clerk serves under Article 979; entities have sixty days from service to object under Article 980, extendable once by not more than thirty days; an Affidavit of No Opposition from each named entity supports an ex parte grant; if expungement is granted the clerk serves the order and judgment under Article 982.

Packet set: la-978-felony-conviction-set